

Malik Akhtar.**A.S.J. /Ex. Officio Justice of
Peace etc.****21.8.2013****Ms. Fatima Malik, Advocate for the petitioner.****Mr. Maqsood ul Hassan, Assistant Advocate General.****Syed Zaheer Ahmad Gillani, Advocate for respondent
No.3.**

AALIA NEELUM, J.- Through the instant petition under Article 199 of the Constitution of Islamic Republic of Pakistan 1973, the petitioner has prayed for setting aside the order dated 27.4.2013 whereby the learned Additional Sessions Judge Lahore, in his capacity as Ex-Officio Justice of Peace directed respondent No.2/SHO Police Station Tibbi City, Lahore to record statement of respondent No.3 under section 154 Cr.P.C., lodged the F.I.R. and proceed further in accordance with law.

2. The learned counsel for the petitioner has contended that respondent No.3 was salesman of one Rizwan Riaz who runs his business in the name and style of “Rizwan Footwear”. Respondent No.3 off and on visited shop of the petitioner and during this period he steel cheque of the petitioner and by filling amount in it and by making forged signatures, presented the same in the bank and succeeded in getting dishonour slip; that he moved application under section 22-A, 22-B Cr.P.C. by narrating false facts before the learned Ex. Officio Justice of Peace/ASJ; that said Rizwan Riaz got lodged criminal case F.I.R. No.324 dated 28.12.2012, offence under section 381 P.P.C. registered at Police Station Masti Gate, Lahore against Muhammad Arshad, respondent No.3 and another wherein it was specifically mentioned that he was his salesman and he steel cheque

and cash of said Rizwan Riaz. Further contends that “Ex. Officio Justice of Peace has not provided any opportunity to the petitioner of being heard” against whom registration of criminal case was sought by respondent No.3; that in his petition under section 22-A, 22-B Cr.P.C. “Ex. Officio Justice of Peace sought report from the SHO on three issues i.e. (a) whether the petitioner has approached him or any of subordinate or his superior officer to lodge any complaint? (b) whether the petitioner has ever made any verbal or written complaint before him or any of his subordinate or superior officer” and (c) If so, what action has been taken? and without awaiting report from the concerned SHO, passed the impugned order in hasty manner, thus the Ex-Officio Justice of Peace has committed serious irregularity and as such the same is liable to be set aside.

3. Conversely, learned counsel for respondent No.3 has opposed the instant petition on the grounds that Station House Officer of the police station Tibbi City, Lahore was bound to register the F.I.R. in all circumstances and if the same was found false during investigation, then the complainant is liable to be prosecuted under section 182 P.P.C. Reliance has been placed on the case reported as **Muhammad Bashir v. Station House Officer, Okara Cantt and others** (PLD 2007 SC 539).

4. On the other hand, the learned Law Officer states that on receiving application, SHO initial inquiry has been conducted. As per the report submitted by the SHO before this Court reflects that controversy between the parties could only be resolved after obtaining expert opinion regarding the genuineness or otherwise of the signatures of the petitioner on the cheque in question.

5. After hearing the learned counsel for the parties it has been observed by this Court that the dispute between the parties is over issuance of cheque and genuineness or otherwise of the signatures of the petitioner and these disputed questions of facts cannot be

undertaken in the Constitutional jurisdiction of this Court. Reliance is placed on the case of **Col. Shah Sadiq v. Muhammad Ashiq and others** (2006 SCMNR 276). However, it may be added that after registration of a criminal case, the Investigating Officer is not expected to act in a mechanical manner and in all cases to arrest the accused as soon as the report is lodged, especially where criminal case registered under section 489-F P.P.C. Reliance has been placed on the case reported as **Madawa through President v. Inspector-General of Police, Punjab and 15 others** (PLD 2013 Lahore 442) wherein it is observed as under:

*“initial probe in three elements i.e. (presenting of) dishonour slip, notice under section 30 of the Negotiable Instruments Act, 1881, establishment of dishonesty and obligation, and **genuineness of signatures of the drawer**, by an Investigating Officer may be justified before arresting an accused-drawer of a cheque.”*

“It is further observed that respondents shall in the matter of registration of F.I.R. under section 489-F of P.P.C. satisfy themselves regarding, prima facie, disclosure of an offence by the provision of dishonour slip and a notice under section 30 of the Negotiable Instruments Act, 1881 prior to registration of F.I.R. for the said offence.”

Since an arrest is in nature of the encroachment on the liberty of a person, so incriminating material and reasonable belief that was required to be entertained with regard to the committing of offence at the time of arrest of the accused but not necessary at the time when criminal case was registered. It is not necessary that every investigation should result in arrest. The Investigating Officer in exercise of its statutory power couple with duty, after associating accused in investigation of a case, may find that a case is made out against an accused and his arrest is required he can arrest him. In

case of implementation of impugned order dated 27.4.2013, the Investigating Officer in the present case can arrest the accused when there is sufficient incriminating evidence was brought on the record after obtaining expert opinion of Forensic Science Laboratory as held in Madawa's case supra wherein it is stated that if F.I.R. was registered, before arrest if question of genuineness of signatures of the drawer is arise that should be probed first. Till then arrest of the petitioner should be deferred if F.I.R. was got registered against the petitioner in compliance of order dated 27.4.2013 passed by the learned Ex. Officio Justice of Peace/ASJ. Keeping in view the facts and circumstances of the case, the learned counsel for the petitioner could not point out any illegality or irregularity in the impugned order and the same did not call for any interference.

6. For what has been stated above, this writ petition is disposed of with the above observations.

(Aalia Neelum)
Judge

Approved for reporting.

Judge